

THE REVIEW

Vol. I, No. 8

August, 1911

THE REVIEW

Vol. I, No. 8

August, 1911

COVER IMAGE CREATED BY TRANSCRIBER AND PLACED IN THE PUBLIC DOMAIN

The Project Gutenberg eBook of The Review, Vol. 1, No. 8, August 1911

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Review, Vol. 1, No. 8, August 1911

Author: Various

Publisher: National Prisoners' Aid Association

Release date: January 8, 2023 [eBook #69740]

Most recently updated: October 19, 2024

Language: English

Original publication: United States: National Prisoners' Aid Association, 1913

Other information and formats: www.gutenberg.org/ebooks/69740

Credits: Franciszek Skawiński and the Online Distributed Proofreading Team at <https://www.pgdp.net> (This book was produced from images made available by the HathiTrust Digital Library.)

*** START OF THE PROJECT GUTENBERG EBOOK THE REVIEW,
VOL. 1, NO. 8, AUGUST 1911 ***

VOLUME I, No. 8. AUGUST, 1911

THE REVIEW

A MONTHLY PERIODICAL, PUBLISHED BY
THE
NATIONAL PRISONERS' AID ASSOCIATION

AT 135 EAST 15th STREET, NEW YORK CITY.

TEN CENTS A COPY.

SEVENTY-FIVE CENTS A YEAR

E. F. Waite, President.

F. Emory Lyon, Vice President.

O. F. Lewis, Secretary and Editor Review.

E. A. Fredenhagen, Chairman Ex. Committee.

James Parsons, Member Ex. Committee.

G. E. Cornwall, Member Ex. Committee.

Albert Steelman, Member Ex. Committee.

A. H. Votaw, Member Ex. Committee.

CONTENTS

	PAGE
THE NEW YORK STATE BOARD OF PAROLE	<u>1</u>
THE ORGANIZATION AND CORRELATION OF THE PROBATION AND PAROLE SYSTEMS	<u>6</u>
EVENTS IN BRIEF	<u>11</u>

THE NEW YORK STATE BOARD OF PAROLE

GEORGE A. LEWIS

Member of the State Board of Parole, President of the Eleventh State
Conference of Charities and Correction

Reprinted from the New York Herald

Of the value of the parole in the State of New York there need only be said that, so far as the parole authorities have been able to learn, out of every one hundred men paroled from Sing Sing, Auburn and Clinton prisons since the system went into practical effect, in October, 1901, eighty-three have "made good." During these ten years approximately two thousand men on parole have complied with all conditions required of them and been discharged. Assuming what was pretty nearly the fact, that a former convict after serving a prison term under the old system was a morally broken man, even though he might not pursue an active criminal career, this means that there have been two thousand more useful members of the community returned to it, and that there are two thousand less actual and potential criminals in existence than if there had been no parole work in the State—this number, moreover, being exclusive of men under the restricted liberty of parole "now at large and in good standing," who may be said to swell the satisfactory total to 2,600.

Aside from the moral advantage derived from the parole, it may be mentioned that the State has made a material gain to the extent of some hundreds of thousands of dollars that would otherwise have been expended for the maintenance in prison of men who have been at large and are self-supporting.

A large and increasing number of our prison population come sooner or later before the Board of Parole for its consideration and judgment, the number of applicants eligible for parole having grown more than four hundred per cent since September, 1907. The hope of early and favorable action furnishes the strongest incentive for the prisoner to conduct himself without fault in his cell, in the workshop and in the school. The family and

friends on the outside bestir themselves with equal zeal to obtain suitable offers of employment (which are always investigated by the Board), a proper place of abode, and to enlist the interest of good people generally to lend a helping hand to the released prisoner.

As an illustration of the working of the system we may take the April meeting of the Board of Parole, under the chairmanship of Mr. Cornelius V. Collins, who has since retired as State Superintendent of Prisons, in which position his administration of the penal institutions under his control, from the point of view of broad humanity and enlightened philosophy, has been a model for civilization. (The consensus of the International Prison Congress, comprising delegates from forty-seven nations, that met in Washington last October, after a tour of inspection of the penal institutions of the United States, was that nowhere else in the world had the prisons so nearly solved the problem of the reformation of the criminal as in the State of New York.)

There were some sixty men who applied for parole at the April meeting of the Board at Sing Sing, and of these thirty applications were granted, and I may safely assert that in the case of every prisoner granted his parole it was better, both for the State and the individual, that he should be given the opportunity again to test his capacity in the struggle for an honest livelihood. In each instance the application for parole, signed by the prisoner, contained a statement as to his regular trade, profession or vocation, an account of his occupation in prison, his hopes and expectations on his release, with full details as to prospective employment while on parole and residence during that period. This application was accompanied by a written statement made by the prisoner at the beginning of his term, and by separate reports of the warden, the prison clerk, the principal keeper, the prison physician, the prison chaplain, the principal of the prison school and the District Attorney who had prosecuted the case originally. Each prisoner's preliminary statement, filled out and signed on entering prison, covered about thirty-five points, including his own version of his "criminal history," particulars of his conviction, family relations, information relating to drinking habits and insanity in the family, his own account of the particular crime for which he was convicted and his industrial history, with the names of his employers.

The report of the warden gave his estimate of the character and capacity of each man, with that official's view as to the probability of the prisoner

keeping his parole. The report of the prison clerk was as to the convict's crime, the date of his reception in prison, his criminal history as revealed by photographs, finger prints and measurements, and an account of punishments, if any, and other particulars from the prison records. The principal keeper's report was along the same lines as that of the warden, but made out quite independently, as was another by the prison chaplain. The prison physician's report was as to the convict's physical and mental condition and his ability to do work of various kinds. The report of the principal of the prison school showed the conduct and progress of the convict in the classes, unless he had been excused as competent or on account of bodily or mental disabilities. The report of the District Attorney who had convicted the prisoner was merely a statement of his views as to the advisability of granting the parole.

Offers of Employment.

In addition to these formal documents each prisoner's dossier contained letters from persons whose names he had given as references, and offers of employment, written upon a blank form and signed by the proposed employer before a notary, giving his name, address and business, and stating the amount of wages he proposes to pay and whether the amount included board. These offers of employment had been investigated thoroughly by a parole officer or some one connected with the Board, and were indorsed as approved or otherwise. All of the documents had been prepared with care and deliberation within six weeks before the meeting of the Board.

Each applicant is brought separately before the Board of Parole, which consists of three members (the State Superintendent of Prisons, ex officio, and two others appointed by the Governor) of equal rank, the Superintendent generally presiding, though either of his colleagues is competent for the position and frequently relieves him. The Board having familiarized itself with the documents in each prisoner's case, he is questioned as kindly and delicately as possible with regard to every detail essential to a knowledge of his past life and his future prospects and intentions. As a misstatement to the Board, if detected, has a most unfavorable effect upon the prisoner's petition for parole, and as any

statement he may make is subject to verification, he generally speaks the truth. No unnecessary inquisition is made, however. Indeed, at the meeting in April a prisoner who refused to answer certain question as to his parentage, because he had thus far succeeded in keeping information of his conviction for crime from his family, was nevertheless released on parole.

One of the interesting cases at a recent meeting at Sing Sing was that of an Irishman, forty-nine years of age, who had served twenty years of a life sentence for murder in the second degree, but had become eligible for parole under the law of 1907. Being asked the usual question:—"Do you think that you will be able to support yourself out of prison?" he replied confidently in the affirmative.

"Twenty-five years ago," he said, "I got married and went into the trucking business in New York with one horse and wagon. When my trouble came I had twenty double teams at work. My wife has carried on the business all the time I have been in prison, but she had a hard pull to get over the panic four years ago, and now she's only got four teams. Two years from now I'll have the twenty teams at work again."

Responding to another of the customary questions, "Are you and your wife on friendly terms?" the man's eyes filled with tears.

"On friendly terms, is it?" he repeated, his voice trembling. "God bless her, she's never missed a visit to me under the rules, winter or summer, snow or rain or sunshine, ill or well, in the twenty years I'm here, nor did I once fail to get a letter on letter day! Aye, we're on friendly terms, or I'd stay right here in this prison rather than go out of it."

It is reasonably certain that man will keep his parole.

Another case somewhat out of the ordinary was that of a man of thirty, who, in a confidential position, had embezzled several thousand dollars from his employer and spent it in riotous living. He had evidently been a wild young fellow, but he was possessed of superior intelligence and education and had undoubtedly come to realize that he had been making a fool of himself and that it was time for him to make amends. Indeed, the warden, the principal keeper and the chaplain, reporting separately, each expressed the opinion that the prisoner was sincere in his expressed determination to redeem his character on leaving prison. The meeting of the Board in April was the third

occasion on which his application had been presented. The employer whom he had despoiled had objected to the man being admitted to parole on the two previous occasions, and while that might not have had undue weight with the Board, word had been received from the police of a city in the South that the prisoner was wanted there for murder. It turned out that he was the wrong man that time, but it put off his chance for parole.

On this last occasion the prisoner's former employer had retracted his protests, against his being admitted to parole, and the man had the offer of a good position on his release. No prisoner is ever admitted to parole unless he can show that he will be self-supporting out of prison. Only a day or two before this meeting of the Board, however, a letter had been received by the warden of the prison from the New York Police Department to the effect that the police of a Western city had telegraphed that a warrant for the man's arrest was on the way from that city, where he was wanted for grand larceny. Of course it was impossible to admit him on parole until this warrant had been disposed of. The prisoner was bitterly disappointed, for he had been anticipating immediate freedom after three years of incarceration.

Convicted Public Officials.

There were two former public officials who had betrayed their trusts and been punished among the applicants for parole at the April Sing Sing meeting, one having been a magistrate and the other an official of his home county. Each of these men had a home to go to and sufficient money to live on for a time at least, and each announced his intention upon his release to go into the real estate and insurance business. Both of these men were put through the same course of kindly but thorough questioning on the same points as the prisoners from humbler walks in life by Mr. Collins, and both are, of course, compelled to conform to the same rules of parole as the others.

One convict who had the sympathy of the Board was an exceptionally keen and alert former man o' war's man of the United States Navy, thirty years of age, who had learned the trade of structural iron worker after honorable discharge from the service. He had kept up his union dues while in prison and had a job at \$6 a day waiting for him on his release. The former sailor had served two years of an indeterminate sentence on conviction for

bigamy, of which crime he was legally guilty. He had first married an unworthy woman, who had left him and their child, and, having reason to believe that she would not cross his path again, had gone through the ceremony with another woman, whom he had informed of his previous marital experience. On the first woman's discovery of his relations with the other, however, she had sworn out a warrant against him and he had been tried and sentenced accordingly.

Investigation showed that the prisoner's child was being properly brought up by his mother, an eminently respectable woman, and that the conviction for bigamy was the only blot upon an otherwise honorable life. He had never used intoxicating liquors even in the navy, which is something of a test of character. There is little doubt that this man will "make good."

An idea of the value of the scholastic instruction in our State prisons may be gathered from the fact that four convicts—three Italians, and one Russian—who came before the Board at the Sing Sing meeting in April had learned the English language and reading and writing during the periods of their incarceration. Three other Italian convicts, who had begun their sentences entirely ignorant of the language and had not progressed so far as to be able to answer the questions of the chairman of the Board without the aid of an interpreter, made not the slightest protest on being informed that they would be retained a little longer in prison until they should be somewhat improved in reading, writing and speaking English. Ten or twelve of the men paroled on this particular occasion had learned trades in Sing Sing. Entering the prison as unskilled common laborers, they left it fairly qualified in trades that pay good wages.

Provision for the indeterminate sentence in the State of New York was first inaugurated by a law enacted in 1889, which merely permitted such sentences in all cases and made no distinction between the first offenders and recidivists. The early hostility of the judiciary to the parole system is illustrated by the fact that during the twelve years' life of this law, from 1889 to 1901, only 115 indeterminate sentences were imposed in all the criminal courts of the State, involving 13,000 convicts committed to its prisons, not one subject of an indeterminate sentence in all these years being sent to Sing Sing from New York city, which furnishes about 70 per cent of all commitments to the State prisons. In 1901 the indeterminate sentence was made mandatory for first offenders in all cases where the

maximum penalty was five years or less, but it was not until 1907 that it became mandatory in all cases of first offenders, with the exception of those convicted of murder in the first degree. In 1909 a law was enacted applying the parole system to all first offenders then in prison under definite sentences.

The system that bears the name of “probation” is one which has grown to its present proportions and importance since 1901 through the enactment of no less than forty general and local statutes. First applied only to adults and in cities, its benefits have been wisely extended to children and to all the courts of the State. By legislation in 1909 a measure took effect which enables boards of supervisors to fix salaries for probation officers, and during last year fifteen counties availed themselves of this privilege, and others are following their example. The system does not exist and is not designed for habitual criminals and hardened recidivists, but only for first offenders; or, at least, for such whose personal characteristics and history give promise of good results from its restraining and guiding influence.

Reforms Inside Prisons.

Had it not been for reforms inside the prisons it would have been impossible to successfully apply the parole and probation systems in the State. A writer in the *World's Work* says, “With the last ten years greater advances in the reform of prison administration have been made throughout civilization than during all the previous centuries that man has been forcibly sequestering his lawless brother from society,” and he declares that the United States has led the world in these reforms, and that New York has led the other forty-seven States. More than to any other one man the constructive legislation and the progressive reforms that have brought about this splendid advance in humanity and civilization is due to Cornelius V. Collins, who, as has been mentioned, recently resigned the position of State Superintendent of Prisons, which he had held for thirteen years. When Mr. Collins first took charge of the prisons of New York the essential principal of penology was retribution; in the words of Dr. Frederick H. Wines, “to measure guilt on the one hand and suffering on the other, and to strike an equitable balance between the two.” The effort seemed aimed at stamping out the convict’s self-respect. He was forced to move about outside of his

cell in the degrading lockstep formation, his hand on another convict's shoulder and his eyes on the ground; he wore a hideous black striped suit of ashen gray; his hair was cropped close to his head; he ate his meals from tin dishes. Although it was against the law, corporal punishment was quite generally administered to prisoners.

To-day, due to the efforts of Mr. Collins, a well fitting uniform of bright blue gray has been substituted for the convict's striped suit, and the military squad formation has superseded the lockstep. His hair is trimmed with shears to suit his individual preference. Crockery has replaced the old tin cups and pans in the prisons of the State. An oculist and a dentist look after the eyes and teeth of the prisoners. An electric light in each cell has replaced the old tallow candles. Infraction of rules in the New York prisons to-day merely consigns the convict to solitary confinement until he reaches a normal condition of mind and signifies his willingness to conform to discipline. The paddle, the rack, the ducking stool and all other forms of corporal punishment have been abolished in New York's penal institutions.

Just now we are beginning to realize and measure the far reaching result of the prison system of graded schools, the inauguration of which was accomplished by Mr. Collins in 1905. These schools are conducted with the greatest earnestness and efficiency, under the supervision and with the co-operation of the State Department of Education. Many men who come to prison are absolutely illiterate: many, too, without the smallest speaking acquaintance with the English language. The prison school pupils are almost always eager to learn, and display the greatest patience in gaining an elementary education. Without attributing any distinct ethical value to the mere acquisition of unfamiliar facts, it is nevertheless true that the broadening of the mental prospect, the removal of blindness from the mental eye, is very often—particularly in the case of men guilty of crimes of violence and passion—the apparent proximate means of a practical reformation of the individual. He is awakened to a glimmering consciousness of the relativity of his rights, wrongs and desires, to the rights of others, and he is less apt to break out in anti-social criminal acts. The recent introduction of a carefully graded marking system, with honor bars or chevrons, and stars worked on the sleeve, has been a potent means of obtaining better discipline and improved conduct among the prisoners.

The Parole Board does not permit prisoners to avail themselves of the services of lawyers to present their cases or urge them upon the Board by arguments or appeals, either written or oral. Let us not be too optimistic, as there is a reverse side to the picture which claims our earnest attention and should stimulate public spirited persons to promote and encourage ceaseless efforts aimed at betterments which require legislative and executive concurrence and encouragement for their realization.

Among other things, the Board needs and must have more active relations with committing Magistrates and prosecuting attorneys, and must be supplied with some brief on the facts in each case, showing its salient features and distinguishing facts, which color and qualify the significance of the crime in question and aid in checking up the narratives of the parole applicants.

Further, the Board needs and welcomes the widest co-operation of probation officers, the happy application of that "Big Brother" idea which is rapidly coming to the front in the remedial treatment of delinquency.

The traditional New York system of congregate prison administration, long accepted by the people of this State as the wisest and most humane scheme which could be devised for the treatment of convicts, and crystallized in our prison laws and practice, seems to necessitate by its maintenance a degree of freedom of intercourse which I must regard as harmful in its influence on many of the prisoners, particularly the youngest men.

One more burning question affecting the material and moral welfare of our convict population is the matter of industries and earnings.

While opinions radically differ upon these subjects, I am persuaded that we shall find in the near future some more just solution of the problem of providing more work and more diversified industries in our prison and securing to each industrious convict something like a living wage, available to ameliorate the pitiful conditions of poverty and want so prevalent among the families of prison inmates.

THE ORGANIZATION AND CORRELATION OF THE PROBATION AND PAROLE SYSTEMS^[1]

ARTHUR W. TOWNE

Secretary of the New York State Probation Commission

The last few years, and especially the past decade, have witnessed the development, side by side, but quite independently of each other of two similar reformatory agencies, known respectively as the probation and the parole systems. The characteristic feature of these systems is that they are non-institutional: they deal with offenders not behind walls or in institutions, but in the open and in the offenders' own homes. The principal difference between probation and parole is that probation is the oversight and reformatory treatment of offenders, conditionally released on good behavior, before and without commitment to an institution; while parole is a similar oversight and treatment applied after commitment.

Each of these systems involves two kinds of functions: first, the placing of the offenders on probation or parole; second, the supervising and aiding of the offenders while on probation or parole. The first function, which is judicial, is discharged, in cases of probation, by the trial court or judge; and in cases of parole, either by the committing court or more commonly by the institutional authorities or a special body known as a board of parole. This paper does not discuss the first function, that is to say, the placing of persons on probation or parole. It confines itself to the second function—the supervising and aiding of offenders after they are put on probation or parole. The judge, the institutional authorities, or the parole board writes the prescription, but the long period of nursing and helping the patient to convalesce is borne by the probation or parole officer. This latter work is carried on, in cases of probation, by the probation officer, and in cases of parole by the parole officer. Theirs is the duty of watching over those on probation or parole, and of befriending, counselling, admonishing, and otherwise aiding them to become orderly, useful citizens.

The purposes of probationary and parole oversight, as well as the duties of probation and parole officers, as has already been intimated, are substantially alike. Whether a person is on probation from a court, or on parole from an institution, the same kind of inquiries must be made from his relatives, friends, neighbors and employer in order to ascertain whether his conduct is satisfactory; and the same sort of moral influences and constructive measures must be brought into play to overcome his evil habits and to inculcate ambition, right motives and proper conduct. Both probation and parole officers should maintain the same sort of friendly, helpful attitude toward those under their care, and should use similar case methods.

When we pause to consider the resemblances of these two systems, and that practically the same things are being done by these two sets of officers, does it not suggest the possibility and desirability of a closer relationship between the two systems? The query naturally arises—Why not use the same officers for both duties? This brings us to the principal question which this paper will discuss: Should the relationship between probation and parole officers be one of entirely separate and independent action, or one of co-operation; or should both probationary and parole oversight be carried on by the same set of officers?

This question has not received the attention it deserves. Persons interested in the extension and improvement of probation, and those interested in the development of parole, have been so much occupied in establishing and strengthening the one system or the other, that they have not taken time to be sufficiently concerned about the desirable relationship between the two systems. The probation system in most places has developed, under permissive legislation, more or less sporadically, as a local experiment or expedient. The probation officer, or officers, in any one court have usually had no legal or organic relation to the probation work in other parts of the state. Like Topsy, the probation system has just “grewed.” State-wide uniformity and co-ordination have been an after-thought. As for the parole system, its growth has been equally uneven, sporadic and for the most part without any comprehensive, well-articulated plan. One institution and then another has gradually adopted parole methods and employed parole officers, but without much, if any, regard for other parole systems or for the probation system. Year by year these two systems have grown up side by side, and the numbers of probation officers and of parole officers have

increased. There are now nearly 1,000 paid probation officers in the United States, and the number of parole officers is probably in the hundreds and still multiplying. It is undoubtedly only a question of time before both of these systems will come into general use throughout the country. Is it not pertinent, therefore, for probation and parole workers to take account of stock and compare notes, and to inquire whether these two systems should not develop a closer relationship.

Before discussing the relationship that should exist between probation officers and parole officers, it will be well to consider how each set of officers should be organized to secure the best results. Suppose we consider first, the probation system. That organization of probation officers is best which best promotes (a) the supervising of the actions of persons on probation; (b) the improving of their conduct and condition; and (c) the informing of the court as to whether those on probation observe its conditions and are entitled to remain at liberty. In the time at my disposal I can only state rather dogmatically some of the essentials which in my judgment the probation system should possess in order to fulfil these purposes.

First, those who act as probation officers should possess the right personal qualifications. They should be intelligent, devoted, firm, sympathetic, tactful, discreet, observant, energetic and resourceful. This is demanding a great deal, but it is the price of success.

Second, the probation officer should sustain the right time relations to those on probation. Long probationary periods with frequent interviews are necessary. Perfunctory reports by probationers to the probation officer are insufficient. The officer must visit the homes and environments of his probationers often, and labor with them long enough and earnestly enough to produce real effects. A paid probation officer as a rule should not be expected to look after more than about fifty new cases during a year, or at any one time. Volunteers should have no more cases than their free time permits them to attend to adequately, which is usually not more than one or two. The overloading of probation officers with more cases than they have time to attend to, is disastrous to efficiency.

Third, each probation officer should have the right space relations to those on probation. He should be on the spot to discover personally what his

probationers are doing, and to attend to their needs. Therefore he should limit his work to a relatively small territory. In most places the service of each probation officer is wisely confined to a single court, or to a single city or county. In Ohio, Indiana, and certain other states, however, the adult probation law provides for itinerant probation officers, attached to state penal or reformatory institutions, and required to travel considerable distances in order to visit those on probation scattered in different parts of the State. Such traveling officers are probably compelled to rely largely on written reports and "absentee treatment," and their work must be correspondingly unsatisfactory. Effectiveness in probation work requires that the area covered by each probation officer shall be small, and that the officer shall live in the community where he works.

Fourth, probation officers in different courts, so far as possible, should avoid overlapping each other's territory. New Jersey, New York and certain other states have organized the probation service in rural districts with the county as the unit area, and with one or more paid probation officers available to serve in all courts throughout the county. Were each court of a town, village or small city to have its own probation officer, the officers as a rule would be without enough cases to occupy their time, and they would be underpaid and inexperienced. In all probability some would be paid on a fee basis, which is objectionable. Through the use of county probation officers the workers are more expert, and the quality of the work is uniform throughout the county.

Fifth, there should be in each state some state board or commission empowered to inspect, supervise, improve and co-ordinate the work of probation officers throughout the state. Three states—New York, Massachusetts, and Vermont—have state probation commissions, and bills for the establishment of similar bodies were introduced this year in the legislatures of Illinois and Pennsylvania. These commissions do such things as these: they collect reports from probation officers, inspect their work, study methods, recommend improvements and uniformity, supply forms for records, hold conferences of probation officers and of judges, aid in securing the appointment of proper officers and the appropriation of proper salaries, publish statistics and literature, investigate complaints, bring about co-ordination among courts and officers in different parts of the state, and promote desirable legislation. Such commissions, or in the smaller states a

probation bureau in some other state department, can be of the greatest value in extending and strengthening the probation service.

Turning next to the organization of the parole system, I ask your judgment as to whether these five principles should not hold equally with respect to the organization of parole officers.

In the first place, we will undoubtedly agree that parole officers like probation officers, should be selected with special reference to their personal fitness for the work. They should have a social sense, and be bent not on spying or intimidating, but on helping. For the same reasons that the dilettante and the policeman fail in probation work, such persons will fail in parole work.

Second, the parole officer should be spared from having more cases assigned to his care than his time permits him to attend to as he should. If fifty probation cases are usually enough to occupy a probation officer, an equal number of parole cases is probably as many as the average parole officer can properly look after at any one time.

Third, the parole officer, like the probation officer, should work in a comparatively small area. This condition is met by the parole system of few institutions—chiefly by those which parole their inmates only in the immediate vicinity of the institution. The parole officers doing parole work for state institutions are usually attached to a single institution, and are expected to look after persons paroled from that institution to widely scattered parts of the state—sometimes throughout the entire state.

For instance, in New York State (which has an area of 47,620 square miles) Sing Sing Prison has one parole officer supposed to cover the entire state for that prison, and Auburn and Clinton Prisons each have a parole officer supposed to do likewise for his respective institution. During 1910, from the eleven state correctional institutions for adults and training schools for children, there were released on parole 3,435 persons. To look after these 3,435 persons as well as those continued on parole from the preceding year, the state employed only 16 parole officers. Each officer served for only one institution. The only state institutions in New York which do not use traveling parole officers are Elmira and Napanoch Reformatories for young men. Persons paroled from these two reformatories to live in New York City are placed under the oversight of agents of the Prison Association or

other organizations; those paroled from these two institutions to live in Buffalo are put under an agent of the Charity Organization Society, and those paroled to other localities are placed under the surveillance of police officials. It has been intended, however, to employ traveling parole officers for these two institutions, and for this purpose a civil service examination has been held. Persons paroled from the other nine state institutions, as a rule, are placed under a traveling parole agent attached to the respective institution. The areas covered by these different traveling parole officers range from a few counties to the entire state.^[2]

A parole officer required to travel over wide areas cannot know local conditions; he cannot see those on parole often enough; he cannot keep track of their actions; he cannot aid or restrain them when desirable. What sort of supervision or reformatory influence can be exercised by a parole officer who, on account of the wide territory he has to cover, may be able to see a certain John Smith, who is on parole, only once in every two, three or four months? Some parole officers do not see those under their care even as often as this. The officers are forced to rely on written reports, which in many cases are utterly undependable. Parole work at long range and by mail order is necessarily defective and unsatisfactory. Furthermore, the use of traveling officers means large traveling expenses. Each parole officer should preferably confine his work to a single city or single county.

Taking the country as a whole, I fear that the chief criticism to be made of the organization of parole systems is that most parole officers are expected to cover too large areas and to look after too many cases.

This brings us to the fourth principle which we noted as wise to follow in the organization of probation work, and which it would seem, should apply also in parole work. We should avoid unnecessary overlapping. If only one parole officer is needed in a community, why have several? Under the present system in New York State, if each of five institutions—(each with its own parole officer)—paroles a person to the same locality, it would be necessary from time to time for five different parole officers, each attached to a different institution, to go to that locality, each officer to see and inquire about a different person on parole. How much simpler and more effective it would be to have one officer in that vicinity who could look after persons paroled to there from any and all institutions. Volunteers cannot be depended upon; we must have paid officers. Each institution, however,

cannot provide a special paid parole officer in each locality. Economy would require that so far as possible all institutions use the same parole officer.

Now if it is wasteful and undesirable to employ two or more probation officers to serve in a territory where one could do the work, and if it is wasteful and undesirable to employ two or more parole officers to serve in a territory where one could do the work, why should we employ in a given area one probation officer to supervise persons on probation, and one or more parole officers to perform practically the same kind of work with respect to persons on parole, provided the work of all these officers could be done equally well by only one officer? In most communities there are not enough parole cases to make it practical to employ a parole officer to deal exclusively with parole cases. In fact, most small places have few, if any, persons on parole at a given time. The local city or county probation officers are already there, and could generally take over such parole cases as require their attention. Except in the few very large centers where there may be enough parole cases to require the entire time of a parole officer, the most rational way, in my judgment, of securing the desirable oversight of those on probation and parole, and of avoiding unnecessary duplication of effort, is to use the local probation officers for both sets of offenders.

Let me summarize very briefly some of the facts already stated, and point out also one or two additional reasons why such a union seems wise. You will recall that we agreed (1) that the purposes and methods of the probationary and parole supervision are similar; (2) that the same qualifications are needed in parole officers as in probation officers; (3) that the use of local officers for parole work would secure closer and more helpful oversight of those on parole; and (4) that such a combination would avoid unnecessary travel and duplication of work and would be a source of economy. In addition (5) both probation and parole officers often deal with the same persons. An offender who at one time comes before a court to be investigated by a probation officer, or who is placed by the court under the care of the probation officer, may at another time be on parole. Furthermore, other members of his family may at times be on probation or parole. (6) It is to the advantage of the local community to have an offender who is on parole in its midst, properly supervised by a local officer. (I have not time to discuss by whom these local probation-parole officers should be

appointed and paid; but since local social conditions have usually contributed to the delinquency which has resulted in the commitment of offenders to institutions and so made them subjects for parole, and since they have been sentenced by local courts, it seems as proper that the local community, if deemed necessary, should furnish the parole officer, as that it should provide its own judge or probation officer.)

This plan of doubling up these two lines of work implies of course that there shall be an adequate number of probation officers, and that they shall be of the right sort. It is probable, however, that the increased importance of the officers, and the increased amount of work, which would result from such a change, would tend to secure the appointment of a more nearly adequate number of officers. Such a plan need not of necessity make any change in the matter of reports by the parole officers, to those in authority, or in the control over the parole officers.

Now I am well aware that objections will be raised to any such scheme of combining probation and parole work in the same set of officers. Let us look briefly at certain of the objections that may be offered. (1) Naturally many institutional authorities will probably desire to appoint their own parole officers, and to have them directly responsible to the institution. Should a personal desire, however, be allowed to stand in the way of efficiency? Should not that method of appointment be followed which will bring about the best results? (2) Another objection that may be raised by some institutional authorities is that parole officers should be attached to particular institutions in order to understand properly the institutional methods and aims. What is the benefit of such knowledge, however, if the parole officers are traveling about and can see the persons on parole so infrequently that they cannot apply the knowledge? (3) Again, the institutional authorities may contend that the standards of probation officers in judging whether persons on parole should be recommitted are less strict than those of traveling parole officers. Any such difference of standard, if it exists, is more than offset by the advantages of having local officers. At any rate it is a matter which could be adjusted by properly educating the probation and parole officers. In the long run the standards of the probation officers are probably just as likely to be right as those of the parole officers. (4) In the next place a critic might ask what would be done with females on parole. Of course we all recognize that girls or women on either probation

or parole should be placed under officers of their own sex. If the local paid probation officers were all men, and there were cases of girls or women on parole, the situation could be met in the same way as if there were females on probation; namely, by securing a paid woman probation officer for part or whole time service, or, if that were impracticable, by enlisting the services of one or more women volunteers. (5) Another objection would be the fear that children on probation or parole would be harmed by being mixed with adults on probation or parole. The problem of separating children on parole from adults on parole is no more difficult than that of segregating children on probation from adults on probation. Likewise the keeping of parole cases apart from probation cases is only a matter of administration. Where there are enough children either on probation or parole to warrant the employment of officers exclusively for children, this should be done.

Wherever the parole work is being well done by officers devoting themselves wholly to parole cases, or by private agencies, I would not advise any change; but in most places very positive advantages would probably accrue from using local probation officers for both probation and parole cases. In New York State we have made a beginning in the direction of such a union of probation and parole. The Legislature of 1910 authorized probation officers to serve as parole officers, and a number of institutions have begun to avail themselves of the services of probation officers.

Fifth, benefits corresponding to those of state supervision over probation officers can be had through state supervision over parole officers. Regardless of whether parole work is carried on by probation officers or by special parole officers, the state should exercise general oversight over their work. For the sake of economy, co-ordination and efficiency this oversight can well be vested in the same state body that supervises probation officers. In this connection it may be mentioned that Governor Dix of New York State has recently recommended that supervisory authority over parole officers be conferred upon the State Probation Commission, and that its title be changed to that of State Probation and Parole Commission.

The probation and parole systems have come to stay, but they must so improve their operations as to be able to stand the most rigorous examination by both friendly and hostile inquirers. The increased financial support which both systems need will come only as the systems prove that

they are succeeding as they should. I doubt if the parole system can stand the scrutiny and cold analysis, which will some day be brought to bear on it, unless it operates through local officers. The most hopeful way of getting faithful, competent local parole officers in most places would seem to be through the use of probation officers. With proper state supervision over both systems there would seem to be every reason to believe that this scheme of combining probation and parole supervision can be worked out in a practical way, and to the advantage of each system.

FOOTNOTES:

[1] Read at the National Conference of Charities and Correction in Boston in June, 1911.

[2] The nearest approach in New York State to the desirable restriction of the work of parole officers to a small area, is found in the parole work of the House of Refuge on Randall's Island. Most of the boys paroled from this Institution live in New York City. Many boys from this institution, however, are paroled to other parts of the State: and in such instances the institutional parole officers may be unable to visit them oftener than once in three months or so.

EVENTS IN BRIEF

[Under this heading will appear each month numerous paragraphs of general interest, relating to the prison field and the treatment of the delinquent.]

Adult Probation in Illinois.—Illinois has fallen into line by adopting an adult probation law. The measure went into effect on July 1. The law was drafted by a committee of the Civic Federation of Chicago, of which Prof. Charles R. Henderson was chairman. Since opposition had developed in previous sessions of the General Assembly to proposals for adult probation, it was deemed necessary to make the statute enacted this year very limited in its scope.

Another bill which passed and which was supported by the Civic Federation, was one increasing the number of state parole officers from 2 to 7. A general revision of the Illinois parole laws was contemplated by Prof. Henderson's committee and bills were drafted with this in view, but owing to recent decisions of the Supreme Court, it seemed inadvisable to urge any such legislation at this session.

Reforms Urged by the Howard Association.—The 1910 report of the Howard Association of England makes an appeal for the securing of the following nine reforms before the meeting of the International Prison Congress in London in 1915:

1. Time allowance for payment of fines.
2. Young offenders to be allowed to pay fines by easy instalments.
3. A thorough application of the Probation Act, with the appointment of paid probation officers, responsible to the state and removable by the state.
4. Probation officers to have power to collect fines.

5. Restitution for money or goods stolen as allowed by the Probation Act, to be further developed and enforced.
 6. The abolition of repeated short sentences, the folly and futility of which have been so long demonstrated, and the results of which have been so disastrous.
 7. Manual or technical training for young prisoners who suffer from physical defects.
 8. A more thorough classification of prisoners, and to ensure this the establishment of specialized prisons suitable to the age, physical and mental condition of the prisoner.
 9. The adoption of the Indeterminate sentence with the establishment of parole boards and the appointment of parole officers.
-

Anti-Mugging Bill Vetoed.—The International Association of Chiefs of Police and the police authorities in New York State were able to induce Governor Dix of New York to veto the “anti-mugging” and “anti-third degree” bill recently passed by the Legislature of that State. The proposed law provided that no photograph, measurement, or physical examination of any person charged with a crime should be made by the police prior to conviction, and that no such prisoner should be questioned further than to get information as to his or her identity, except in the presence of a magistrate.

Governor Dix in vetoing the bill declared:

“It is the first duty of the state to protect from criminals the lives and property of citizens. To this end the officers charged with the prevention, detection and punishment of crime should be given ample powers by statute, and should receive the support of all good citizens. This bill hampers the police in securing the most usual and simple means of identification of suspected criminals. It adds difficulty to securing evidence of crime and clues to its detection. It subjects officers of arrest to unnecessary and groundless accusations in case of alleged violence or persecution.”

National Probation Association.—This is the new name of the National Probation Officers' Association. The change was decided upon at the fourth annual meeting of the organization in Boston in June. The membership of the association includes probation and parole officers, judges and others interested in probation and parole. Judge George S. Addams of the Cleveland Juvenile Court is president for the ensuing year, and Arthur W. Towne of the State Probation Commission, Albany, is secretary-treasurer. Next year's meeting will be held in Cleveland during the week of the National Conference of Charities and Correction.

The association has published a directory of probation officers in the United States, which shows that there are about 900 such officers working under salary. It also has in preparation a handbook on juvenile court procedure and probation. This is being written by a committee of which Bernard Flexner of Louisville is chairman. The portion of the handbook, relating to investigating the cases of children brought before juvenile courts, was printed in preliminary form and discussed at the meeting in Boston. Following are extracts from this part of the handbook:

“For intelligent disposition of any case a judge must have in his possession the essential facts regarding the life and history of the child before him, and it must be ascertained that these facts come from a reliable source, known to the court. Whenever paid probation officers are employed, the investigations should be left to these officers. An investigation, to be entitled to the name, must include first, an interview with the child and, second, a visit to his home, including an interview with his relatives. That is certainly the minimum standard for adequate investigation. To it may be profitably added the investigation of the school record; of the employment record in the cases of older boys or girls, and of church and neighborhood associations.”

“The business of investigation is one of the most serious defects in our juvenile court system. There are very few courts whose investigations are systematic, uniform and impartial. Cases are often rushed through and the facts learned afterwards. Many cases are decided on partial evidence, many of the most significant facts cropping out after the child has been disposed of by the court. It is better, if necessary, to keep a child in detention a few

days longer and to continue the case, if by that method a painstaking investigation takes the place of a hasty, slipshod inquiry.”

A Drugless Institution.—Warden Simpson of the Jackson prison is reported in the Detroit Journal as declaring that he has succeeded in practically abolishing the illicit use of drugs in that institution. “It was the greatest evil I had to contend with on my arrival,” he says. “Dope was present in large quantities, there were numerous drug fiends and they were all disabled by its consumption. The gateways of this traffic were numerous—through the mails, by express, by trusties and visitors, and free men, such as teamsters, having access to the shops and yards. All this has been stopped by proper supervision and guarding, resulting from the organization of the official force. All visiting is now conducted over a table, with an officer sitting at the end, and a partition running under the table, so that no drugs can enter in this way. Visitors are no longer conducted through the shops and yards, and the inmates work with better results under this plan, as before they naturally regarded themselves as curiosities, to be placed on exhibition at a slight remuneration to the state.”

Col. Scott's New Position.—Governor Dix of New York has recently appointed the well-known penologist, Col. Joseph F. Scott of Elmira Reformatory, to succeed Mr. C. V. Collins, resigned, as superintendent of state prisons. Col. Scott was formerly superintendent of Concord Reformatory in Massachusetts, and has been the efficient head of Elmira since 1903. His appointment is for a term of six years. The institution under his charge are Sing Sing, Auburn, Clinton and Great Meadow Prisons; the hospitals for the criminal insane at Dannemora and Matteawan, and the State Farm for Women at Valatie.

Col. Scott's appointment followed an official investigation of the prisons, which was made by the Governor's office. Col. Scott has named John S. Kennedy as warden of Sing Sing, William J. Homer as warden of Great

Meadows, and John H. Mealey as warden of the new State Farm for Women. Dr. Robert B. Lamb has resigned from the superintendency of the Matteawan State Hospital, and a civil service examination has been held for the purpose of filling the position; but the appointment has not yet been made.

Farm for Convicts in Mississippi.—The State of Mississippi, according to press dispatches, is planning to establish a 22,000 acre farm to be worked by convicts. Mississippi is undergoing a great awakening as to its agricultural possibilities, and it is expected that this farm will not only serve the purpose of benefiting the criminals placed on it, but will also tend to educate the public by bringing it to a fuller realization of the possibilities of agriculture. Part of the tract to be worked is cut-over timber lands. The principal crops will probably be corn, potatoes, melons, oranges and sugar cane.

American Institute of Criminal Law.—The American Institute of Criminal Law and Criminology will hold its annual meeting in Boston on August 31 and September 1, meeting in connection with the American Bar Association. The secretary of the Institute is Harry E. Smoot, 31 West Lake Street, Chicago, Ill.

Compensation of Persons Held as Witnesses.—The following editorial concerning the obligation of the public to persons who are held in jail as witnesses appeared in a recent issue of the Worcester Gazette:

“In Springfield some time ago, one Guiseppi Ferreri was charged with murder. Two witnesses of the crime alleged, Antonio and Joseph Galetto, were held as witnesses. To assure their presence at the time of trial, these two witnesses were required to furnish bonds in \$1,000. Being poor, they

were unable to do this and are now languishing in jail. There they will stay for months, perhaps, separated from their families, and friends and denied the privilege of earning a living.”

“What has happened to these two men is likely to happen to anybody. They are in jail not because they committed a crime but because they are supposed to have seen one committed.

“‘It is nothing less than outrageous,’ says The Boston Post, ‘that two men can be imprisoned for months simply because they saw somebody else commit a murder.’ We subscribe to the statement. Undoubtedly the ends of justice sternly demand the retention of such witnesses. It is necessary for the wellbeing and protection of the community that hard and fast measures be taken for the prosecution of murderers.”

“But why should any two men or any one man, be made to bear heavy burdens to the end that justice may be done. Not these two men but all society will be benefited if a conviction is brought about. Then why should not the burden incident be distributed and borne by society as a whole rather than by two of its members?”

“If it is deemed wise to keep these two witnesses in durance, if their privilege to earn a living is taken from them by society for society’s benefit, then society owes them something. It owes them compensation for the time they give in the service of society. They are not criminals but laborers worthy of their hire.”

“Clapping innocent people into jail is serious business. And witnesses thus detained, like innocent people falsely imprisoned, should receive pay from the state for the service done in one case and damages for the injustice committed in the other.”

Swimming Pool for Convicts.—Additions are being built at the State Farm for vagrants at Bridgewater, Mass., and, according to the Boston Herald, one of the features of the new building will be a swimming pool.

Nevada Convicts to Build Roads.—As the result of recent legislation, convicts in Nevada are to be put to work constructing roads. The Washoe county commissioners, according to a press despatch, have requested 50 convicts to work on the highways in that county. The state is to pay one dollar per day for each convict engaged on good roads work, and to furnish the implements and all the necessary materials. Each convict who does the work assigned to him is to receive twenty-five cents a day, as well as a commutation of sentence. The prisoners will live in tents and be under constant guard.

Transcriber's Notes

Table of contents was created by the transcriber and is hereby placed in the public domain.

Obvious errors and omissions in punctuation have been fixed.

Any inconsistencies in spelling have been retained.

*** END OF THE PROJECT GUTENBERG EBOOK THE REVIEW,
VOL. 1, NO. 8, AUGUST 1911 ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project GutenbergTM License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.

- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT

LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance

with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.